

COMMITTEE ON HEALTH & HUMAN SERVICES
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2733
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-1901.01, Arizona Revised Statutes, is amended
3 to read:

4 32-1901.01. Definitions of unethical conduct and
5 unprofessional conduct; permittees; licensees

6 A. In this chapter, unless the context otherwise requires, for the
7 purposes of disciplining a permittee, "unethical conduct" means the
8 following, whether occurring in this state or elsewhere:

9 1. Committing a felony, whether or not involving moral turpitude,
10 or a misdemeanor involving moral turpitude or any drug-related offense.
11 In either case, conviction by a court of competent jurisdiction or a plea
12 of no contest is conclusive evidence of the commission.

13 2. Committing an act that is substantially related to the
14 qualifications, functions or duties of a permittee and that demonstrates
15 an actual or potential unfitness to hold a permit in light of the public's
16 safety.

17 3. Working under the influence of alcohol or other drugs.

18 4. Using alcohol or other drugs to such a degree as to render the
19 permittee unfit to perform the permittee's employment duties.

20 5. Violating a federal or state law or administrative rule relating
21 to the manufacture, sale or distribution of drugs, devices, poisons,
22 hazardous substances or precursor chemicals.

23 6. Violating a federal or state law or administrative rule relating
24 to marijuana, prescription-only drugs, narcotics, dangerous drugs,
25 controlled substances or precursor chemicals.

26 7. Violating state or federal reporting or recordkeeping
27 requirements on transactions relating to precursor chemicals.

- 1 8. Intending to sell, transfer or distribute, or to offer for sale,
2 transfer or distribution, or selling, transferring, distributing or
3 dispensing or offering for sale, transfer or distribution an imitation
4 controlled substance, imitation over-the-counter drug or imitation
5 prescription-only drug as defined in section 13-3451.
- 6 9. Having the permittee's permit to manufacture, sell, distribute
7 or dispense drugs, devices, poisons, hazardous substances or precursor
8 chemicals denied or disciplined in another jurisdiction.
- 9 10. Committing an offense in another jurisdiction that if committed
10 in this state would be grounds for discipline.
- 11 11. Obtaining or attempting to obtain a permit or a permit renewal
12 by fraud, by misrepresentation or by knowingly taking advantage of the
13 mistake of another person or an agency.
- 14 12. Wilfully making a false report or record that is required by
15 this chapter, that is required by federal or state laws pertaining to
16 drugs, devices, poisons, hazardous substances or precursor chemicals or
17 that is required to pay for drugs, devices, poisons or hazardous
18 substances or precursor chemicals or for services pertaining to such drugs
19 or substances.
- 20 13. Knowingly filing with the board any application, renewal or
21 other document that contains false or misleading information.
- 22 14. Providing false or misleading information or omitting material
23 information in any communication to the board or the board's employees or
24 agents.
- 25 15. Violating or attempting to violate, directly or indirectly, or
26 assisting in or abetting the violation of, or conspiring to violate this
27 chapter.
- 28 16. Violating a formal order, terms of probation, a consent
29 agreement or a stipulation issued or entered into by the board or its
30 executive director pursuant to this chapter.
- 31 17. Failing to comply with a board subpoena or failing to comply in
32 a timely manner with a board subpoena without providing any explanation to
33 the board for not complying with the subpoena.
- 34 18. Failing to provide the board or its employees or agents or an
35 authorized federal or state official conducting a site investigation,
36 inspection or audit with access to any place for which a permit has been
37 issued or for which an application for a permit has been submitted.
- 38 19. Failing to notify the board of a change of ownership,
39 management or pharmacist in charge.
- 40 20. Failing to promptly produce on the request of the official
41 conducting a site investigation, inspection or audit any book, record or
42 document.
- 43 21. Overruling or attempting to overrule a pharmacist in matters of
44 pharmacy ethics or interpreting laws pertaining to the practice of
45 pharmacy or the distribution of drugs or devices.

1 22. Distributing premiums or rebates of any kind in connection with
2 the sale of prescription medication, other than to the prescription
3 medication recipient.

4 23. Failing to maintain effective controls against the diversion of
5 controlled substances or precursor chemicals to unauthorized persons or
6 entities.

7 24. Fraudulently claiming to have performed a service.

8 25. Fraudulently charging a fee for a service.

9 26. Advertising drugs or devices, or services pertaining to drugs
10 or devices, in a manner that is untrue or misleading in any particular,
11 and that is known, or that by the exercise of reasonable care should be
12 known, to be untrue or misleading.

13 B. In this chapter, unless the context otherwise requires, for the
14 purposes of disciplining a pharmacist or pharmacy intern, "unprofessional
15 conduct" means the following, whether occurring in this state or
16 elsewhere:

17 1. Using alcohol or other drugs to such a degree as to render the
18 licensee unfit to practice the profession of pharmacy.

19 2. Violating any federal or state law, rule or regulation relating
20 to the manufacture or distribution of drugs and devices or the practice of
21 pharmacy.

22 3. Dispensing a different drug or brand of drug in place of the
23 drug or brand of drug ordered or prescribed without the express permission
24 in each case of the orderer, or in the case of a prescription order, the
25 medical practitioner. The conduct prohibited by this paragraph does not
26 apply to substitutions authorized pursuant to section 32-1963.01.

27 4. Obtaining or attempting to obtain a license to practice pharmacy
28 or a license renewal by fraud, by misrepresentation or by knowingly taking
29 advantage of the mistake of another person or an agency.

30 5. Having the licensee's license to practice pharmacy denied or
31 disciplined in another jurisdiction.

32 6. Claiming professional superiority in compounding or dispensing
33 prescription orders.

34 7. Failing to comply with the mandatory continuing professional
35 pharmacy education requirements of sections 32-1936 and 32-1937 and rules
36 adopted by the board.

37 8. Committing a felony, whether or not involving moral turpitude,
38 or a misdemeanor involving moral turpitude or any drug-related offense.
39 In either case, conviction by a court of competent jurisdiction or a plea
40 of no contest is conclusive evidence of the commission.

41 9. Working under the influence of alcohol or other drugs.

42 10. Violating a federal or state law or administrative rule
43 relating to marijuana, prescription-only drugs, narcotics, dangerous
44 drugs, controlled substances or precursor chemicals when determined by the
45 board or by conviction in a federal or state court.

46 11. Knowingly dispensing a drug without a valid prescription order
47 as required pursuant to section 32-1968, subsection A.

1 12. Knowingly dispensing a drug on a prescription order that was
2 issued in the course of the conduct of business of dispensing drugs
3 pursuant to diagnosis by mail or the internet, unless the order was any of
4 the following:

5 (a) Made by a physician who provides temporary patient supervision
6 on behalf of the patient's regular treating licensed health care
7 professional or provides a consultation requested by the patient's regular
8 treating licensed health care professional.

9 (b) Made in an emergency medical situation as defined in
10 section 41-1831.

11 (c) Written to prepare a patient for a medical examination.

12 (d) Written or the prescription medications were issued for use by
13 a county or tribal public health department for immunization programs or
14 emergency treatment or in response to an infectious disease investigation,
15 a public health emergency, an infectious disease outbreak or an act of
16 bioterrorism. For the purposes of this subdivision, "bioterrorism" has
17 the same meaning prescribed in section 36-781.

18 (e) Written or antimicrobials were dispensed by the prescribing or
19 dispensing physician to a contact as defined in section 36-661 who is
20 believed to have had significant exposure risk as defined in section
21 36-661 with another person who has been diagnosed with a communicable
22 disease as defined in section 36-661.

23 (f) Written or the prescription medications were issued for
24 administering immunizations or vaccines listed in the United States
25 centers for disease control and prevention's recommended immunization
26 schedule to a household member of a patient.

27 (g) For epinephrine delivery systems that are written or dispensed
28 for a school district or charter school and that are to be stocked for
29 emergency use pursuant to section 15-157 or for an authorized entity to be
30 stocked pursuant to section 36-2226.01.

31 (h) For glucagon that is written or dispensed for a school district
32 or charter school and that is to be stocked for emergency use pursuant to
33 section 15-344.01.

34 (i) Written by a licensee through a telehealth program that is
35 covered by the policies and procedures adopted by the administrator of a
36 hospital or outpatient treatment center.

37 (j) Written pursuant to a physical or mental health status
38 examination that was conducted through telehealth as defined in section
39 36-3601 and consistent with federal law.

40 (k) For naloxone hydrochloride or any other opioid antagonist
41 approved by the United States food and drug administration and written or
42 dispensed for use pursuant to section 36-2228 or 36-2266.

43 13. Failing to report in writing to the board any evidence that a
44 pharmacist or pharmacy intern is or may be professionally incompetent, is
45 or may be guilty of unprofessional conduct or is or may be mentally or
46 physically unable to safely engage in the practice of pharmacy.

1 14. Failing to report in writing to the board any evidence that a
2 pharmacy technician or pharmacy technician trainee is or may be
3 professionally incompetent, is or may be guilty of unprofessional conduct
4 or is or may be mentally or physically unable to safely engage in the
5 permissible activities of a pharmacy technician or pharmacy technician
6 trainee.

7 15. Failing to report in writing to the board any evidence that a
8 permittee or a permittee's employee is or may be guilty of unethical
9 conduct or is or may be violating this chapter or a rule adopted under
10 this chapter.

11 16. Committing an offense in another jurisdiction that if committed
12 in this state would be grounds for discipline.

13 17. Knowingly filing with the board any application, renewal or
14 other document that contains false or misleading information.

15 18. Providing false or misleading information or omitting material
16 information in any communication to the board or the board's employees or
17 agents.

18 19. Violating or attempting to violate, directly or indirectly, or
19 assisting in or abetting in the violation of, or conspiring to violate
20 this chapter.

21 20. Violating a formal order, terms of probation, a consent
22 agreement or a stipulation issued or entered into by the board or its
23 executive director pursuant to this chapter.

24 21. Failing to comply with a board subpoena or failing to comply in
25 a timely manner with a board subpoena without providing any explanation to
26 the board for not complying with the subpoena.

27 22. Refusing without just cause to allow authorized agents of the
28 board to examine documents that are required to be kept pursuant to this
29 chapter or title 36.

30 23. Participating in an arrangement or agreement to allow a
31 prescription order or a prescription medication to be left at, picked up
32 from, accepted by or delivered to a place that is not licensed as a
33 pharmacy. This paragraph does not prohibit a pharmacist or a pharmacy
34 from using an employee or a common carrier to pick up prescription orders
35 at or deliver, ~~UNLESS PROHIBITED BY FEDERAL LAW,~~ prescription medications
36 to ~~the office or home of~~ a medical ~~practitioner~~ ~~PRACTITIONER'S HOME OR~~
37 ~~OFFICE~~, the ~~PATIENT'S~~ residence, ~~of a patient or a patient's~~ A hospital,
38 ~~LONG-TERM CARE FACILITY OR WORKPLACE OR ANOTHER DESIGNATED PHYSICAL~~
39 ~~ADDRESS PROVIDED BY THE PATIENT WHERE THE PATIENT OR THE PATIENT'S~~
40 ~~DESIGNATED AGENT IS AVAILABLE TO RECEIVE A DELIVERY.~~

41 24. Paying rebates or entering into an agreement for paying rebates
42 to a medical practitioner or any other person in the health care field.

43 25. Providing or causing to be provided to a medical practitioner
44 prescription order blanks or forms bearing the pharmacist's or pharmacy's
45 name, address or other means of identification.

46 26. Fraudulently claiming to have performed a professional service.

47 27. Fraudulently charging a fee for a professional service.

1 28. Failing to report a change of the licensee's home address,
2 contact information, employer or employer's address as required by section
3 32-1926.

4 29. Failing to report a change in the licensee's residency status
5 as required by section 32-1926.01.

6 30. Failing to maintain effective controls against the diversion of
7 controlled substances or precursor chemicals to unauthorized persons or
8 entities.

9 C. In this chapter, unless the context otherwise requires, for the
10 purposes of disciplining a pharmacy technician or pharmacy technician
11 trainee, "unprofessional conduct" means the following, whether occurring
12 in this state or elsewhere:

13 1. Using alcohol or other drugs to such a degree as to render the
14 licensee or registrant unfit to perform the licensee's or registrant's
15 employment duties.

16 2. Violating a federal or state law or administrative rule relating
17 to the manufacture or distribution of drugs or devices.

18 3. Obtaining or attempting to obtain a pharmacy technician license
19 or license renewal or pharmacy technician trainee registration by fraud,
20 by misrepresentation or by knowingly taking advantage of the mistake of
21 another person or an agency.

22 4. Having the licensee's license to practice as a pharmacy
23 technician denied or disciplined in another jurisdiction.

24 5. Failing to comply with the mandatory continuing professional
25 education requirements of section 32-1925, subsection H and rules adopted
26 by the board.

27 6. Committing a felony, whether or not involving moral turpitude,
28 or a misdemeanor involving moral turpitude or any drug-related
29 offense. In either case, conviction by a court of competent jurisdiction
30 or a plea of no contest is conclusive evidence of the commission.

31 7. Working under the influence of alcohol or other drugs.

32 8. Violating a federal or state law or administrative rule relating
33 to marijuana, prescription-only drugs, narcotics, dangerous drugs,
34 controlled substances or precursor chemicals when determined by the board
35 or by conviction in a federal or state court.

36 9. Failing to report in writing to the board any evidence that a
37 pharmacist or pharmacy intern is or may be professionally incompetent, is
38 or may be guilty of unprofessional conduct or is or may be mentally or
39 physically unable to safely engage in the practice of pharmacy.

40 10. Failing to report in writing to the board any evidence that a
41 pharmacy technician or pharmacy technician trainee is or may be
42 professionally incompetent, is or may be guilty of unprofessional conduct
43 or is or may be mentally or physically unable to safely engage in the
44 permissible activities of a pharmacy technician or pharmacy technician
45 trainee.

46 11. Failing to report in writing to the board any evidence that a
47 permittee or a permittee's employee is or may be guilty of unethical

1 conduct or is or may be violating this chapter or a rule adopted under
2 this chapter.

3 12. Committing an offense in another jurisdiction that if committed
4 in this state would be grounds for discipline.

5 13. Knowingly filing with the board any application, renewal or
6 other document that contains false or misleading information.

7 14. Providing false or misleading information or omitting material
8 information in any communication to the board or the board's employees or
9 agents.

10 15. Violating or attempting to violate, directly or indirectly, or
11 assisting in or abetting in the violation of, or conspiring to violate
12 this chapter.

13 16. Violating a formal order, terms of probation, a consent
14 agreement or a stipulation issued or entered into by the board or its
15 executive director pursuant to this chapter.

16 17. Failing to comply with a board subpoena or failing to comply in
17 a timely manner with a board subpoena without providing any explanation to
18 the board for not complying with the subpoena.

19 18. Failing to report a change of the licensee's or registrant's
20 home address, contact information, employer or employer's address as
21 required by section 32-1926.

22 19. Failing to report a change in the licensee's or registrant's
23 residency status as required by section 32-1926.01.

24 Sec. 2. Section 32-1925, Arizona Revised Statutes, is amended to
25 read:

26 32-1925. Renewal of license of pharmacists, interns and
27 pharmacy technicians; fees; expiration dates;
28 penalty for failure to renew; continuing education

29 A. Except for interns and pharmacy technician trainees, the board
30 shall assign all persons who are licensed under this chapter to one of two
31 license renewal groups. Except as provided in section 32-4301, a holder
32 of a license certificate designated in the licensing database as even by
33 way of verbiage or numerical value shall renew it biennially on or before
34 November 1 of the even-numbered year, two years after the last renewal
35 date. Except as provided in section 32-4301, a holder of a license
36 certificate designated in the licensing database as odd by way of verbiage
37 or numerical value shall renew it biennially on or before November 1 of
38 the odd-numbered year, two years after the last renewal date. Failure to
39 renew and pay all required fees on or before November 1 of the year in
40 which the renewal is due suspends the license. The board shall vacate a
41 suspension when the licensee pays all past due fees and reinstatement
42 penalties. Reinstatement penalties shall not exceed \$350. The board may
43 waive collection of a fee or reinstatement penalty due after suspension
44 under conditions established by a majority of the board.

45 B. A person shall not apply for license renewal more than sixty
46 days before the expiration date of the license.

1 C. A person who is licensed as a pharmacist or a pharmacy
2 technician and who has not renewed the license for five consecutive years
3 shall furnish to the board satisfactory proof of fitness to be licensed as
4 a pharmacist or a pharmacy technician. A person whose license has lapsed
5 for two or more renewal cycles shall pay the fees for the two most recent
6 renewal cycles and the penalties before being reinstated.

7 D. Biennial renewal fees for licensure shall be not more than:

8 1. For a pharmacist, \$250.

9 2. For a pharmacy technician, \$100.

10 3. For a duplicate renewal license, \$25.

11 E. Fees that are designated to be not more than a maximum amount
12 shall be set by the board for the following two fiscal years beginning
13 November 1. The board shall establish fees THAT ARE approximately
14 proportionate to the maximum fee allowed to cover the board's anticipated
15 expenditures for the following two fiscal years. Variation in a fee is
16 not effective except at the expiration date of a license.

17 F. The board shall not renew a license for a pharmacist unless the
18 pharmacist has complied with the mandatory continuing professional
19 pharmacy education requirements of sections 32-1936 and 32-1937. A
20 PHARMACIST MAY COMPLETE THE MANDATORY CONTINUING PROFESSIONAL PHARMACY
21 EDUCATION REQUIREMENTS AFTER SUBMITTING A RENEWAL APPLICATION AND PAYING
22 THE APPLICABLE RENEWAL FEE, BUT THE CONTINUING EDUCATION REQUIREMENTS MUST
23 BE COMPLETED BEFORE THE PHARMACIST'S LICENSE EXPIRES FOR THAT RENEWAL
24 CYCLE. THE BOARD SHALL UPDATE AND MAINTAIN THE RENEWAL APPLICATION AND
25 RENEWAL PROCEDURES TO BE CONSISTENT WITH THIS SUBSECTION.

26 G. The board shall prescribe intern licensure renewal fees that do
27 not exceed \$75. The license of an intern who does not receive specific
28 board approval to renew the intern license or who receives board approval
29 to renew but who does not renew and pay all required fees before the
30 license expiration date is suspended after the license expiration date.
31 The board shall vacate a suspension if the licensee pays all past due fees
32 and penalties. Penalties shall not exceed \$350. The board may waive
33 collection of a fee or penalty due after suspension under conditions
34 established by the board.

35 H. The board shall not renew a license for a pharmacy technician
36 unless that person has a current board-approved license and has complied
37 with board-approved mandatory continuing professional education
38 requirements. A PHARMACY TECHNICIAN MAY COMPLETE THE MANDATORY CONTINUING
39 PROFESSIONAL PHARMACY EDUCATION REQUIREMENTS AFTER SUBMITTING A RENEWAL
40 APPLICATION AND PAYING THE APPLICABLE RENEWAL FEE, BUT THE CONTINUING
41 EDUCATION REQUIREMENTS MUST BE COMPLETED BEFORE THE PHARMACY TECHNICIAN'S
42 LICENSE EXPIRES FOR THAT RENEWAL CYCLE. THE BOARD SHALL UPDATE AND
43 MAINTAIN THE RENEWAL APPLICATION AND RENEWAL PROCEDURES TO BE CONSISTENT
44 WITH THIS SUBSECTION. If a pharmacy technician prepares, compounds or
45 dispenses prescription medications at a remote dispensing site pharmacy,
46 the pharmacy technician shall complete, in addition to any other
47 board-approved mandatory continuing professional education requirements, a

1 two-hour continuing education program on remote dispensing site pharmacy
2 practices provided by an approved provider.

3 Sec. 3. Title 32, chapter 18, article 2, Arizona Revised Statutes,
4 is amended by adding section 32-1930.01, to read:

5 32-1930.01. Change of ownership; continued operations;
6 termination

7 A. NOTWITHSTANDING ANY OTHER PROVISION IN THIS CHAPTER TO THE
8 CONTRARY, IF A BUSINESS THAT HOLDS A VALID PERMIT ISSUED BY THE BOARD
9 UNDERGOES A CHANGE OF OWNERSHIP, THE BUSINESS MAY CONTINUE TO OPERATE
10 UNDER THE EXISTING PERMIT DURING THE PERIOD IN WHICH THE NEW OWNER'S
11 PERMIT APPLICATION IS UNDER REVIEW IF ALL OF THE FOLLOWING CONDITIONS ARE
12 MET:

13 1. THE NEW OWNER [NOTIFIES THE BOARD WITHIN SEVEN CALENDAR DAYS
14 AFTER THE EFFECTIVE DATE OF THE CHANGE IN OWNERSHIP AND] SUBMITS A
15 [COMPLETE] [PERMIT] APPLICATION [FOR A NEW PERMIT AT LEAST FOURTEEN
16 BUSINESS] [WITHIN THIRTY CALENDAR] DAYS [BEFORE] [AFTER THE EFFECTIVE DATE
17 OF] THE CHANGE OF OWNERSHIP [OCCURS].

18 2. THE BUSINESS REMAINS IN COMPLIANCE WITH ALL STATUTES AND RULES
19 APPLICABLE TO THE PERMIT TYPE.

20 3. THE EXISTING PERMIT HAS NOT EXPIRED, BEEN SUSPENDED OR BEEN
21 REVOKED.

22 4. THE NEW OWNER ATTESTS TO ASSUME RESPONSIBILITY FOR COMPLIANCE
23 WITH ALL REGULATORY REQUIREMENTS DURING THE TRANSITION PERIOD.

24 B. THE BOARD MAY DENY CONTINUED OPERATION OF A BUSINESS UNDER
25 SUBSECTION A OF THIS SECTION IF THE BOARD DETERMINES ANY OF THE FOLLOWING:

26 1. THE CHANGE IN OWNERSHIP PRESENTS A RISK TO PUBLIC HEALTH OR
27 SAFETY.

28 2. THE NEW OWNER HAS FAILED TO MEET ANY REQUIREMENT OF SUBSECTION A
29 OF THIS SECTION.

30 3. THE BOARD HAS CREDIBLE EVIDENCE OF FRAUD, DIVERSION OR OTHER
31 CONDUCT THAT WOULD CONSTITUTE GROUNDS FOR PERMIT DENIAL.

32 C. CONTINUED OPERATION UNDER SUBSECTION A OF THIS SECTION
33 AUTOMATICALLY TERMINATES ON THE EARLIEST OF EITHER:

34 1. THE DATE THE BOARD ISSUES THE NEW PERMIT.

35 2. THE DATE THE BOARD DENIES THE PERMIT APPLICATION.

36 D. A BUSINESS OPERATING PURSUANT TO THIS SECTION IS SUBJECT TO ALL
37 INSPECTIONS, REPORTING REQUIREMENTS AND ENFORCEMENT ACTIONS TO THE SAME
38 EXTENT AS A PERMITTED ENTITY.

39 Sec. 4. Section 32-1965, Arizona Revised Statutes, is amended to
40 read:

41 32-1965. Prohibited acts

42 COMMITTING OR CAUSING ANY OF the following acts ~~or the causing of~~
43 ~~any thereof~~, in addition to any ~~others so~~ OTHER ACT specified in this
44 chapter, ~~are~~ IS prohibited:

45 1. ~~The manufacture, sale~~ MANUFACTURING, SELLING, holding or
46 offering for sale ~~of~~ any drug, device, poison, ~~or~~ or hazardous substance
47 that is adulterated or misbranded.

1 2. ~~The adulteration~~ ADULTERING or misbranding ~~of~~ any drug, device,
2 poison, ~~or~~ hazardous substance.

3 3. ~~The alteration, mutilation, destruction, obliteration,~~ ALTERING,
4 MUTILATING, DESTROYING, OBLITERATING or ~~removal of~~ REMOVING the whole or
5 any part of the labeling of, or ~~the~~ doing ~~of~~ any other act with respect
6 to, a drug, device, poison, ~~or~~ hazardous substance, if such AN act is
7 done while ~~such~~ THE article is held for sale and results in ~~such~~ THE
8 article being adulterated or misbranded.

9 4. ~~The manufacture, sale~~ MANUFACTURING, SELLING, holding or
10 offering for sale ~~of~~ a counterfeit drug or forging, counterfeiting,
11 simulating, ~~or~~ falsely representing or without proper authority using any
12 mark, stamp, tag, label, ~~or~~ other identification device authorized or
13 required by rules adopted under ~~the provisions of~~ this chapter, ~~or of~~ the
14 federal act.

15 5. ~~The~~ Using, on the labeling of any drug or device, ~~or~~ in any
16 advertisement, ~~relating to~~ ~~such~~ A drug or device, ~~of~~ any representation
17 or suggestion that ~~such~~ THE drug or device complies with ~~the provisions of~~
18 this chapter.

19 6. In the case of a prescription-only drug or a controlled
20 substance that requires a prescription order by state or federal law, the
21 failure of the manufacturer, packer, ~~or~~ distributor to transmit, to any
22 medical practitioner who makes a written request for information about
23 such A drug, true and correct copies of all printed matter included in any
24 package in which that drug is distributed or other printed matter approved
25 under the federal act.

26 7. Engaging in the practice of pharmacy without first having a
27 current license in good standing issued by the board.

28 8. Making or offering to make a forged, counterfeit, altered or
29 photocopied prescription or drug order for the purpose of obtaining
30 prescription-only DRUGS or controlled ~~substance drugs~~ SUBSTANCES.

31 9. WHOLESALING OR DISTRIBUTING A PRESCRIPTION DRUG OR PRESCRIPTION
32 DEVICE, A CONTROLLED SUBSTANCE, A NONPRESCRIPTION DRUG, A REGULATED
33 CHEMICAL AS DEFINED IN SECTION 13-3401, MEDICAL GAS OR DURABLE MEDICAL
34 EQUIPMENT WITHOUT A VALID BOARD-ISSUED PERMIT.

35 Enroll and engross to conform

36 Amend title to conform

And, as so amended, it do pass

SELINA BLISS
CHAIRMAN

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